

Justification and Approval (J&A) Modified
for Federal Acquisition Regulation (FAR) 13.501

1. Identification of the Agency and Contracting Activity: Defense Health Agency (DHA), U.S. Army Medical Research Institute of Infectious Diseases (USAMRIID) / Defense Health Agency (DHA), United States Army Medical Research Acquisition Activity (USAMRAA), Contracts Group 1, Contracts Branch 3.

2. Nature and/or Description of Action being Approved: The U.S. Army Medical Research Institute of Infectious Diseases (USAMRIID) requires a Firm Fixed Price (FFP), Indefinite Delivery Indefinite Quantity (IDIQ) with a 5-year ordering period to Mapp Biopharmaceutical, Inc., 4921 Directors Pl #100, San Diego, CA 92121, USA, to purchase antibodies and antigens for research utilizing Research, Development, Test & Evaluation (RDT&E) funds.

3. Description of Supplies/Services: This new materiel requirement is for the delivery of human-derived monoclonal antibodies (mAbs) and viral recombinant antigens (Ags) from Mapp Biopharmaceutical, Inc. library. These products have been developed from previously funded efforts with Mapp Biopharmaceutical, Inc. and USAMRIID via contract W81XWH-21-C-0121 and will be used to support further therapeutic efficacy testing against Machupo Virus (MACV), Crimean Congo Hemorrhagic Fever Virus (CCHFV), and Hantavirus Virus infections. USAMRIID needs to have the ability to order a significant quantity of these mAbs and Ags to utilize for all our *in vitro* and *in vivo* experiments.

It is anticipated that each subsequent order will also be funded with RDT&E funds; the FY for funds will vary depending on when each delivery order is awarded. The IDIQ contract awarded as a result of this requirement will include a five-year ordering period.

Period	Period of Performance	Estimated Value	Type of Funding
Base Period	6/30/2025-6/29/2026		RDT&E
Option Period 1	6/30/2026-6/29/2027		RDT&E
Option Period 2	6/30/2027-6/29/2028		RDT&E
Option Period 3	6/30/2028-6/29/2029		RDT&E
Option Period 4	6/30/2029-6/29/2030		RDT&E
Total			

4. Statutory Authority Permitting the Sole Source Acquisition: 41 United States Code 1901 as implemented in Federal Acquisition Regulation 13.501(a)(1)(ii), sole source (including brand name) under the authority of the simplified procedures for certain commercial items.



5. Rationale Justifying Use of Authority Cited: Mapp Biopharmaceutical, Inc. selected human B cells expressing antibodies that react with trimeric MACV glycoprotein (GP) from a population of peripheral blood mononuclear cells (PBMCs) collected from multiple survivors of MACV infection. Mapp Biopharmaceutical, Inc. cloned the variable regions from cognate heavy and light chain pairs into a human IgG1 backbone. They then produced 5-10 mg each of the 20 lead mAbs in a transient transfected ExpiCHO line (for MACV rodent challenge study that were conducted at USAMRIID). Through a series of *in vitro* and *in vivo* studies, USAMRIID and Mapp Biopharmaceutical, Inc. identified lead antibodies that demonstrate protective efficacy in various animal models of disease. These lead antibodies were co-developed and co-owned by USAMRIID and Mapp Biopharmaceuticals and each have exclusive intellectual property rights to these antibodies. Market research examined if there are other sources capable of providing the required human derived mAbs and Ags. It was determined that there are no other vendors that can provide these unique products. The human derived mAbs and viral recombinant Ags from Mapp Biopharmaceuticals library have been developed in conjunction with USAMRIID via contract W81XWH-21-C-0121, through several funded research efforts and have been evaluated for protective efficacy over 5 years. Therefore, these products are unique and cannot be provided by any other source. Further, Mapp Biopharmaceutical does not have any authorized resellers. Therefore, Mapp Biopharmaceutical is determined to be the only vendor capable of providing mAbs and Ags meeting the government's minimum essential characteristics.

6. Efforts to Obtain Competition: In accordance with FAR 5.2 – Synopses of Proposed Contract Actions, a Notice of Intent (NOI) to award a sole source contract will be published on the www.sam.gov website for 15 days. All capability statements received in response to the NOI to Sole Source, by the due date specified, will be considered by the Government solely for the purpose of determining whether to conduct a competitive procurement or to proceed with a sole source contract.

7. Actions to Increase Competition/Remove or Overcome any Barriers to Competition: USAMRIID and USAMRAA will periodically conduct future market research and analysis to determine if other potential sources emerge that are capable of providing the required head impact/acceleration monitoring capability in a mouthguard form factor. Additionally, all future requirements will be synopsized in accordance with FAR 5.201 and if other potential sources do emerge, USAMRAA will assess whether competition for future requirements is feasible.

8. Market Research: Market research conducted in accordance with FAR Part 10 was multifaceted and was undertaken to ascertain 1) if the requirement meets the FAR definition of a Commercial Product, 2) if two or more small businesses exist that can meet the government's requirements, and 3) if there is more than one source capable of meeting the government's requirement.

Market research examined if the required materiel met the FAR definition of a commercial product, which is a product, other than real property, that is of a type customarily used by the general public or by nongovernmental entities for purposes other than governmental purposes and (i) has been sold, leased, or licensed to the general public; or (ii) has been offered for sale, lease, or license to the general public. Market research determined that the required materiel does meet the definition and is commercially available; thus, standard commercial terms and conditions will apply.

Market research conducted in accordance with FAR Part 10 does not support that a minimum of two or more capable small business could potentially satisfy this requirement. Therefore, this requirement is not appropriate for a small business set-aside.

Lastly, market research examined if there are other sources capable of providing the required mAbs and Ags and it was determined that there are no other vendors in the market capable of providing these exact mAbs and Ag products as they are proprietary to Mapp Biopharmaceutical. Further, Mapp Bio does not have any authorized resellers. Therefore, Mapp Bio is determined to be the only vendor capable of providing mAbs and Ags meeting the government's minimum essential characteristics.

9. Other Facts:

a. Procurement History:

(1) Is this a new requirement? Yes

(2) If 9.a.(1) is No, was the action just prior to this one competed? N/A

(3) If 9.a.(2) is Yes, what has changed where this action cannot be competed? N/A

b. Additional Information: N/A

10. Interested Sources: The synopsis required by FAR 5.201 will be posted on the System for Award Management (SAM) website as this requirement meets the threshold stipulated in FAR 5.101(a)(1). Any written inquiries, bids or proposals received shall be considered.

11. Technical Certification:

I certify the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

12. Requirements Certification:

I certify the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

13. Fair and Reasonable Cost Determination:

I hereby determine the anticipated cost to the Government for this contract action will be fair and reasonable.

Basis for Determination:

[REDACTED]

14. Legal Review:

I have reviewed this justification and have found it to be legally sufficient.

[REDACTED]

15. Contracting Officer Certification:

I certify this justification is accurate and complete to the best of my knowledge and belief.

[REDACTED]

[REDACTED]



Control Number: FY25-0040

Review

I have reviewed this justification and find it adequate to support the sole source acquisition.

Concurrence
